

THE STATE OF NEW HAMPSHIRE
JUDICIAL BRANCH
<http://www.courts.state.nh.us>

Court Name: _____

Case Name: _____

Case Number: _____ Charge ID: _____
(if known)

PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD CONVICTION:
For offenses resolved 01/01/2019 or later

PLEASE COMPLETE A SEPARATE FORM FOR EACH OFFENSE

APPLICANT'S INFORMATION			
Full Name:			Date of Birth:
Address:			
City/Town	State	Zip Code	Telephone Number:
E-mail Address: (optional)			

CHARGE INFORMATION		
RSA/Statute:	Charge:	
Offense Date:	Date of Conviction:	Charge Degree at Conviction:
Description of Sentence and Date Sentence Completed:		

PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD (CONVICTION)**APPLICANT'S CERTIFICATION**
(Select all checkboxes that apply)

The applicant was convicted of the above crime/offense, and seeks annulment of any record of arrest, the offense/charge, conviction and sentence, and the applicant represents to the Court that:

- ☐ All the terms and conditions of the sentence listed above have been completed, including the payment of any fine, restitution or other cost, any period of good behavior, any probation period and any suspended sentence imposed by the Court.
- ☐ The time requirements for an annulment under RSA 651:5, III have been met for the crime for which the applicant has been convicted.
- ☐ Since completing the terms and conditions of the sentence imposed by the Court in these matters, the applicant has not thereafter been convicted of any other crime, except a motor vehicle offense classified as a violation, not including driving while intoxicated under RSA 265-A:2, I, RSA 265:82 or RSA 265-82-a.
- ☐ There are currently no charges pending against the applicant in any other Court, except:
-
- ☐ None of the charges sought to be annulled involve a violent crime, a felony crime of obstruction of justice, or an offense for which an extended term of imprisonment under RSA 651:6 was imposed.
- ☐ The charge sought to be annulled does not have an enhanced penalty for a second conviction.
- ☐ The time requirements for all offenses of which I have been convicted have been met.

Violations and Class B Misdemeanors: The Court will make an order on page 3 of this form.

Class A Misdemeanors and Felonies: A copy of this petition will be sent to the Department of Corrections with a request for an investigation and report. After considering the investigation report and any response filed by the State, the Court may make an order on page 4 of this form without a hearing. If you are requesting a hearing before a judge, please check this box. ☐

I swear or affirm, under penalties of law, that the above facts are true and correct to the best of my knowledge.

Date

Applicant's Signature

Name of Counsel

Counsel's Signature

Address

Address

PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD (CONVICTION)**FOR COURT USE ONLY ON VIOLATIONS AND CLASS B MISDEMEANORS ONLY:**

IT IS ORDERED:

☐ That the record of conviction and sentence in the above entitled case, together with any record of arrest or charge therein, will be annulled.

The prosecutor shall have twenty days from the date of receipt of this notice to object to this annulment on the grounds that the offense is not eligible for annulment or that the defendant has not completed all the terms and conditions of the sentence.

If the prosecutor fails to timely object or the court denies the prosecutor's objection, the Court shall issue the Certificate of Annulment below.

☐ The Court DENIES the applicant's petition for the following reason(s):

Date

Signature of Judge

Printed Name of Judge

Date Sent to Prosecutor

IT IS ORDERED AND CERTIFIED:

CERTIFICATE OF ANNULMENT

☐ That the record of conviction and sentence in the above entitled case, together with any record of arrest or charge therein, is hereby annulled. The applicant has shown that issuance of this order is warranted under the statute.

☐ The Court DENIES the applicant's petition for the following reason(s):

Date

Signature of Judge

Printed Name of Judge

CC: ☐ Prosecutor☐ Defense Attorney☐ DMV☐ _____ Police Department☐ Attorney General☐ Sentence Review☐ Defendant☐ Dept. of Safety – Criminal Records☐ Dept. of Corrections☐ Other _____☐ _____ District Division #

PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD (CONVICTION)**FOR COURT USE ONLY ON CLASS A MISDEMEANORS AND FELONIES ONLY:**

The Court having reviewed the investigation report of the Department of Corrections finds that

IT IS ORDERED AND CERTIFIED:

CERTIFICATE OF ANNULMENT

☐ Annulment of the applicant's record will assist in the applicant's rehabilitation and will be consistent with the public welfare and the requirements of law. The record of conviction and sentence in the above entitled case, together with any record of arrest or charge therein, is hereby annulled.

☐ The Court DENIES the applicant's petition for the following reason(s):

Date

Signature of Judge

Printed Name of Judge

CC: ☐ Prosecutor

☐ Defense Attorney

☐ DMV

☐ _____ Police Department

☐ Attorney General

☐ Sentence Review

☐ Defendant

☐ Dept. of Safety – Criminal Records

☐ Dept. of Corrections

☐ Other _____

☐ _____ District Division #